

Flower Turbines Inc Quotation Terms and Conditions

1 Acceptance of Terms:

By accepting this quotation, you acknowledge and agree to abide by the terms and conditions outlined herein. These terms govern the sale of Flower Turbines products and services.

2 Product Specifications:

2.1 The specifications of the Flower Turbines products, including model, dimensions, rated power, and materials, are detailed in the quotation.

2.2 Credit card payments are accepted for purchases totaling over \$2000, subject to an additional 5% surcharge.

3 Pricing and Payment:

3.1 The total price for the Flower Turbines products and associated services is indicated in the quotation.

3.2 Payment terms, including due dates and accepted payment methods, are specified in the quotation. Goods are not released until full payment is received.

3.3 Taxes, if applicable, will be applied according to local regulations and are the responsibility of the customer.

3.4 Shipping fees within the USA: To Be Confirmed. Outside the USA, ExWorks applies unless otherwise stated.

3.6 A handling fee, based on size, weight, and pallet dimensions, will be added to the total cost of the transaction in accordance with the order unless otherwise stated.

3.7 A deposit of 100% of the total amount is required to initiate the manufacturing process unless otherwise agreed. Other arrangements carry a surcharge. Title and risk of loss pass to the customer upon delivery to the carrier or at the point specified in the agreement (ExWorks or otherwise). All sales are final. No returns or cancellations will be accepted unless previously authorized in writing by Flower Turbines Inc.

4 Delivery and Installation:

4.1 The estimated delivery timeline is provided in the quotation, but delays may occur due to unforeseen circumstances.

4.2 Customer is responsible for ensuring that installation procedures are carried out by qualified personnel and must provide necessary access unless otherwise arranged.

Site of installation should be secure. Any discrepancies in quantity or damage during transit must be reported within 5 business days of receipt.

4.3 Customer will be responsible for any additional costs incurred during installation as a result of site-specific requirements.

5 Warranty and Returns:

5.1 Flower Turbines products are covered by a 10-year warranty from the date of installation for parts it manufactures. Other parts may carry their own warranty.

5.2 Warranty claims must be initiated through the provided process and require documentation of the issue.

5.3 Returns are subject to approval and must be authorized by Flower Turbines in advance. Approved returns may be subject to restocking and handling fees.

6 Liability and Indemnification:

6.1 Flower Turbines is not liable for damages resulting from the improper installation, use, or maintenance of Flower Turbines products. Flower Turbines shall not be liable for any indirect, incidental, or consequential damages arising from product use, installation, or delays.

6.2 The customer agrees to indemnify and hold Flower Turbines harmless from any claims arising from the customer's use of the products.

7 Intellectual Property:

7.1 All intellectual property rights, including patents, trademarks, proprietary information, and know-how, related to Flower Turbines technology, remain the sole property of Flower Turbines. Reverse engineering is strictly prohibited.

8 Data and Privacy:

8.1 Flower Turbines will collect and process customer data only for the purpose of fulfilling the transaction, and customer data will be handled in accordance with our Privacy Policy.

9 Force Majeure:

9.1 Flower Turbines shall not be liable for any failure or delay in performance due to circumstances beyond its reasonable control, including but not limited to natural disasters, acts of God, and labor disputes.

10 Governing Law and Dispute Resolution:

10.1 This agreement is governed by the laws of New York, Nassau County.

10.2 Any disputes arising from or related to this agreement shall be resolved through binding arbitration according to the commercial law of New York, Nassau County, USA.

11 Amendment and Severability:

11.1 Changes to this agreement must be made in writing and agreed upon by both parties.

11.2 If any provision of this agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

12 Entire Agreement:

12.1 This quotation form, together with any attachments or appendices, constitutes the entire agreement between Flower Turbines and the customer, superseding any prior agreements or understandings.

12.2 The customer's project form and written specifications are incorporated by reference.